CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

# COUR EUROPÉENNE DES DROITS DE L'HOMME
# EUROPEAN COURT OF HUMAN RIGHTS

## SECOND SECTION

## DECISION

Application no. 6482/04
by Recep DOĞANER
against Turkey

The European Court of Human Rights (Second Section), sitting on 6 January 2009 as a Chamber composed of:

Françoise Tulkens, *President,*
Ireneu Cabral Barreto,
Vladimiro Zagrebelsky,
Danutė Jočienė,
András Sajó,
Nona Tsotsoria,
Işıl Karakaş, *judges,*

and Sally Dollé, *Section Registrar*,

Having regard to the above application lodged on 14 January 2004,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

## THE FACTS

The applicant, Mr Recep Doğaner, is a Turkish national who was born in 1960 and lives in Istanbul. He was represented before the Court by Mr İbrahim İnce, a lawyer practising in Istanbul. The Turkish Government ("the Government") were represented by their Agent.

The facts of the case, as submitted by the parties, may be summarised as follows.

The applicant was the deputy leader of the People's Democracy Party (*Halkın Demokrasi Partisi,* "HADEP"). He was prosecuted and convicted

for spreading separatist propaganda and HADEP was dissolved following a decision of the Constitutional Court of 13 March 2003, published in the Official Gazette on 19 July 2003. As an ancillary measure under Article 69 § 9 of the Constitution, the Constitutional Court banned the applicant and 45 other HADEP members and leaders from becoming founder members, ordinary members, leaders or auditors of any other political party for a period of five years.

The applicant complained to the Court of breaches of Articles 6, 7, 9, 10, 11, 13 and 14 of the Convention in respect of these events.

## THE LAW

After communication of the application to the respondent Government, the applicant was invited to comment on the observations which the Government had submitted to the Court.

By letter dated 22 September 2008, sent by registered post, the applicant's representative was notified that the period allowed for submission of his client's observations had expired and that no extension of time had been requested. The legal representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the case. Nevertheless, this letter was returned to the Registry of the Court on 13 October 2008, with a note by the postal authority, stating that the applicant's representative had moved office.

The Court observes that at the time of registration of the application the representative was asked to inform the Registry of any changes in his address. Nevertheless, he failed to inform the Registry of his new location. No other information or communication has been received from the applicant or the representative.

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his case, within the meaning of Article 37 § 1 (a) of the Convention.

Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

*Decides* to strike the application out of its list of cases.

Sally Dollé
Registrar

Françoise Tulkens
President